

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
KEVIN ROSADO,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
DEPARTMENT OF HOMELESS SERVICES, THE NEW
YORK CITY DEPARTMENT OF HOMELESS SERVICES
POLICE DEPARTMENT, POLICE OFFICER DIAZ AND
POLICE OFFICER ROBINSON,

Defendants.
-----X

Index No.:

Date Purchased:

SUMMONS

Plaintiff designates New
York County as the place of
trial.

The basis of venue is:
Place of accident

Plaintiff resides at:
525 Beach 65th Street
Far Rockaway, NY 11692
County of Queens

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
September 15, 2015



DARLENE S. MILOSKI, ESQ.
BADER YAKAITIS & NONNENMACHER, LLP
Attorney for Plaintiff, KEVIN ROSADO
1430 Broadway, Suite 1802
New York, New York 10018
(212) 465-1110

TO: THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

The New York City Department of Homeless Services & NYC DHS Police Department,
PO Diaz and PO Robinson
33 Beaver Street
New York, NY 10004

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**VERIFIED
COMPLAINT**

Plaintiff, complaining of the defendants by his attorneys Bader Yakaitis & Nonnenmacher, LLP, respectfully sets forth and alleges as follows:

1. That at all times hereinafter mentioned, the defendant, **THE CITY OF NEW YORK** was and still is a municipal corporation organized and existing under the laws of the State of New York.
2. On November 18, 2014, within ninety (90) days after the cause of action here accrued, plaintiff caused to have filed with the **THE CITY OF NEW YORK** a Notice of Claim setting forth the time when, the place where and the manner in which the claim arose.
3. That plaintiff has complied with all of the requirements of section 50H of the General Municipal Law as demanded by defendant.
4. That at least thirty (30) days have elapsed since the aforementioned demand or claim has been presented for adjustment or payment thereof and the defendant has refused to

make any payment or adjustment thereof.

5. That on October 24, 2014, the defendant, **THE CITY OF NEW YORK** owned a building or premises known as 1 Schwartz Building Wards Island, NY, NY.

6. That on October 24, 2014, the defendant, **THE CITY OF NEW YORK** owned a facility known as Schwartz Next Step Employment Program located at 1 Schwartz Building Wards Island, NY, NY.

7. That on October 24, 2014, the defendant, **THE CITY OF NEW YORK** operated the aforesaid premises/facility.

8. That on October 24, 2014, the defendant, **THE CITY OF NEW YORK** managed the aforesaid premises/facility.

9. That on October 24, 2014, the defendant, **THE CITY OF NEW YORK** controlled the aforesaid premises.

10. That at all times hereinafter mentioned, the defendant, **THE NEW YORK CITY DEPARTMENT OF HOMELESS SERVICES** was and still is a municipal corporation organized and existing under the laws of the State of New York.

11. That there is imposed upon the defendant, by law, the duty of maintaining its buildings and/or premises and its appurtenances thereon in a safe condition. This duty includes the provision of security in light of foreseeable criminal activity.

12. On November 18, 2014, within ninety (90) days after the cause of action here accrued, plaintiff caused to have filed with the **THE NEW YORK CITY DEPARTMENT OF HOMELESS SERVICES** a Notice of Claim setting forth the time when, the place where and the manner in which the claim arose.

13. That plaintiff has complied with all of the requirements of section 50H of the General Municipal Law as demanded by defendant.

14. That at least thirty (30) days have elapsed since the aforementioned demand or claim has been presented for adjustment or payment thereof and the defendant has refused to make any payment or adjustment thereof.

15. That on October 24, 2014, the defendant, **THE NEW YORK CITY DEPARTMENT OF HOMELESS SERVICES** owned a building or premises known as 1 Schwartz Building Wards Island, NY, NY.

16. That on October 24, 2014, the defendant, **THE NEW YORK CITY DEPARTMENT OF HOMELESS SERVICES** owned a facility known as Schwartz Next Step Employment Program located at 1 Schwartz Building Wards Island, NY, NY.

17. That on October 24, 2014, the defendant, **THE NEW YORK CITY DEPARTMENT OF HOMELESS SERVICES** operated the aforesaid premises/facility.

18. That on October 24, 2014, the defendant, **THE NEW YORK CITY DEPARTMENT OF HOMELESS SERVICES** managed the aforesaid premises/facility.

19. That on October 24, 2014, the defendant, **THE NEW YORK CITY DEPARTMENT OF HOMELESS SERVICES** controlled the aforesaid premises.

20. That at all times hereinafter mentioned, the defendant, **THE NEW YORK CITY DEPARTMENT OF HOMELESS SERVICES POLICE DEPARTMENT** was and still is a municipal corporation organized and existing under the laws of the State of New York.

21. That there is imposed upon the defendant, by law, the duty of maintaining its buildings and/or premises and its appurtenances thereon in a safe condition. This duty includes

the provision of security in light of foreseeable criminal activity.

22. On November 18, 2014, within ninety (90) days after the cause of action here accrued, plaintiff caused to have filed with the **THE NEW YORK CITY DEPARTMENT OF HOMELESS SERVICES POLICE DEPARTMENT** a Notice of Claim setting forth the time when, the place where and the manner in which the claim arose.

23. That plaintiff has complied with all of the requirements of section 50H of the General Municipal Law as demanded by defendant.

24. That at least thirty (30) days have elapsed since the aforementioned demand or claim has been presented for adjustment or payment thereof and the defendant has refused to make any payment or adjustment thereof.

25. That on October 24, 2014, the defendant, **THE NEW YORK CITY DEPARTMENT OF HOMELESS SERVICES POLICE DEPARTMENT** provided security services at the building or premises known as 1 Schwartz Building Wards Island, NY, NY.

26. That on October 24, 2014, the defendant, **THE NEW YORK CITY DEPARTMENT OF HOMELESS SERVICES POLICE DEPARTMENT** provided security services at the facility known as Schwartz Next Step Employment Program located at 1 Schwartz Building Wards Island, NY, NY.

27. That on October 24, 2014, the defendant, **THE NEW YORK CITY DEPARTMENT OF HOMELESS SERVICES POLICE DEPARTMENT** operated the security personnel at the aforesaid premises/facility.

28. That on October 24, 2014, the defendant, **THE NEW YORK CITY DEPARTMENT OF HOMELESS SERVICES POLICE DEPARTMENT** managed the

security personnel at the aforesaid premises/facility.

29. That on October 24, 2014, the defendant, **THE NEW YORK CITY DEPARTMENT OF HOMELESS SERVICES POLICE DEPARTMENT** controlled the security personnel at the aforesaid premises.

30. On October 24, 2014, **THE NEW YORK CITY DEPARTMENT OF HOMELESS SERVICES POLICE DEPARTMENT** employed **POLICE OFFICER DIAZ AND POLICE OFFICER ROBINSON** who were agents, servants and/or employees of the **THE NEW YORK CITY DEPARTMENT OF HOMELESS SERVICES POLICE DEPARTMENT**.

31. On October 24, 2014, the **THE NEW YORK CITY DEPARTMENT OF HOMELESS SERVICES POLICE DEPARTMENT** was responsible for the actions of the aforesaid police officers, **POLICE OFFICER DIAZ AND POLICE OFFICER ROBINSON**.

32. The aforesaid officers **POLICE OFFICER DIAZ AND POLICE OFFICER ROBINSON** were acting as agents, servants and/or employees of the **THE NEW YORK CITY DEPARTMENT OF HOMELESS SERVICES POLICE DEPARTMENT**.

33. The aforesaid officers, **POLICE OFFICER DIAZ AND POLICE OFFICER ROBINSON** of **THE NEW YORK CITY DEPARTMENT OF HOMELESS SERVICES POLICE DEPARTMENT** were acting within the course and scope of their employment.

34. Defendants, **THE NEW YORK CITY DEPARTMENT OF HOMELESS SERVICES POLICE DEPARTMENT** is liable for the aforesaid action of the police officers.

35. The aforementioned acts of each of the defendants were under color of statutes, ordinances, regulations, custom and usage of the State and City of New York.

36. The aforementioned acts of each of the defendants deprived plaintiff of the

privileges and immunities guaranteed to plaintiff as a citizen of the United States, by amendments IV, V, VII and Section I of amendment XIV of the Constitution of the United States and of the State of New York.

37. The aforementioned acts of the defendants constituted cruel and unusual punishment of plaintiff and as such violated amendment VIII of the Constitution of the United States and of the State of New York.

38. By reason of the foregoing, defendants are liable to plaintiff pursuant to Title 42 of the United States Code, including but not limited to Section 1983 thereof.

39. The aforesaid occurrence took place by reason of the defendants' negligent hiring and retention of the aforesaid police officers.

40. By reason of the foregoing the plaintiff was seriously injured.

41. That on October 24, 2014, at or about the premises known as the Schwartz Next Employment Program, located at 1 Schwartz Building, Wards Island, County, City and State of New York, inside the facility thereat, Defendants, **POLICE OFFICER DIAZ & POLICE OFFICE ROBINSON** who upon information and belief are employees of the defendants did, while plaintiff was a resident at said location, illegally and without a proper warrant or cause, did approach plaintiff, assault and batter plaintiff and harass said plaintiff both physically and mentally. Defendants, **POLICE OFFICER DIAZ & POLICE OFFICER ROBINSON**, and other police officers, did for no apparent reason illegally approach, harass, abuse, assault and batter said plaintiff and cause claimant to fear for his safety. Defendants, **POLICE OFFICER DIAZ & POLICE OFFICE ROBINSON**, and other police officers, both physically and mentally abused plaintiff, all without probable cause. Defendants, **POLICE OFFICER DIAZ & POLICE OFFICE ROBINSON** did assault the plaintiff, in that the plaintiff was struck, kicked, punched and beaten about his person by the two Police Officers then forcefully placed claimant in handcuffs. Thereafter, Defendants, **POLICE OFFICER DIAZ & POLICE OFFICE ROBINSON** continued to strike, kick, punch and beat the plaintiff punching and striking plaintiff with a baton. Plaintiff was denied

timely medical attention by the Defendant Police Officers and other police officers. Thereafter, the Defendants, **POLICE OFFICER DIAZ & POLICE OFFICE ROBINSON** and other police officers provided false statements to Emergency Medical Services. Thereafter, the Defendants, **POLICE OFFICER DIAZ & POLICE OFFICE ROBINSON** issued plaintiff a summons for baseless criminal charges for which he must defend himself. It is further alleged that the Defendants, **POLICE OFFICER DIAZ & POLICE OFFICE ROBINSON** engaged in a conspiracy with other police officers to cover up their conduct.

42. By reason of the foregoing, the plaintiff **KEVIN ROSADO** was caused to sustain severe and painful personal injuries to his head, body and limbs as well as psychological damages; has been rendered sick, sore lame and disabled; has been forced to seek and undergo medical and hospital care and attention, all with attendant loss.

43. Pursuant to CPLR Section 1602(2)(iv), defendants are jointly and severally liable for all of plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of the CPLR Section 1601, by reason of the fact that defendants owed the plaintiff a non-delegable duty of care.

44. Pursuant to CPLR Section 1602(7), defendants are jointly and severally liable for all of plaintiff's damages including but not limited to plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that defendants acted with reckless disregard of the safety of others.

45. Pursuant to CPLR Section 1602(2)(iv), defendants are jointly and severally liable for all of plaintiff's damages including but not limited to plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that said defendants are vicariously liable for the negligent acts and omissions of each other and/or others who caused or contributed to the plaintiff's damages.

46. Pursuant to CPLR Section 1602(11), defendants are jointly and severally liable for

all of plaintiff's damages including but not limited to plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that defendants acted knowingly or intentionally, and in concert, to cause the acts or failures which are a proximate cause of plaintiff's injuries.

47. That by reason of the foregoing, plaintiff has been damaged in a sum that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction of this action.

48. Plaintiff herewith demands a trial by jury.

WHEREFORE, Plaintiff **KEVIN ROSADO** demands judgment including compensatory and punitive damages against the Defendants in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction in this matter.

Dated: New York, New York
September 15, 2015


Yours, etc.

DARLENE S. MILOSKI, ESQ.
BADER YAKAITIS & NONNENMACHER, LLP
Attorneys for Plaintiff(s) KEVIN ROSADO
1430 Broadway, suite 1802
New York, Ny 10018
(212) 465-1110

VERIFICATION

STATE OF NEW YORK
COUNTY OF NEW YORK

The undersigned, being an attorney duly admitted to practice in the Courts of the State of New York, affirms under the penalties of perjury; that I am one of the attorneys for the plaintiff(s) in the within action.

That I have read and know the contents of the foregoing summons and complaint and that the same is true to my own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters I believe it to be true.

This verification is made by affirmant and not by the plaintiff(s) herein because the plaintiff(s) is/are not within the county where affirmant maintains his/her office.

This verification is based on information furnished to affirmant by the plaintiff(s) is this action and information contained in affirmant's file.

Dated: New York, New York
September 15, 2015



DARLENE S. MILOSKI, ESQ.